

CHAPTER 20.

An Act to amend the Criminal Law Amendment Act, 1885, the Vagrancy Act, 1898, and the Immoral Traffic (Scotland) Act, 1902. [13th December 1912.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
arrest without
warrant per-
sons offending
against
48 & 49 Vict.
c. 69. s. 2.

1. A constable may take into custody without a warrant any person whom he shall have good cause to suspect of having committed, or of attempting to commit, any offence against section two of the Criminal Law Amendment Act, 1885 (which relates to procuration and attempted procuration).

Amendment of
48 & 49 Vict.
c. 69. s. 2.

2. In paragraphs (3) and (4) of section two of the Criminal Law Amendment Act, 1885, the words "or frequent" shall be inserted after the words "an inmate of", wherever those words occur.

Increased
penalties for
procurers.

3. Any male person who is convicted under section two of the Criminal Law Amendment Act, 1885, may, at the discretion of the court, and in addition to any term of imprisonment awarded in respect of the said offence, be sentenced to be once privately whipped, and the number of strokes and the instrument with which they shall be inflicted shall be specified by the court in the sentence.

Suppression of
brothels.

4.—(1) Section thirteen of the Criminal Law Amendment Act, 1885, shall, so far as it relates to brothels, be amended by inserting after the word "occupier" the words "or person in charge."

(2) Any person who is convicted of a third or subsequent offence against the said section thirteen shall be liable on summary conviction to a penalty not exceeding one hundred pounds or, in the discretion of the court, to imprisonment for any term not exceeding twelve months, with or without hard labour, and, in addition to any such penalty or imprisonment, may be required by the court to enter into a recognizance with or without sureties, or in Scotland to grant a bond of caution, to be of good behaviour for any period not exceeding twelve months, and, in default of entering into such recognizance, or granting such bond, such person may be imprisoned for a period not exceeding three months in addition to any term of imprisonment awarded in respect of his said offence.

(3) The provisions of section thirteen of the Criminal Law Amendment Act, 1885, in so far as they relate to third or subsequent offences, are hereby repealed.

Determination
of tenancy of
premises on
conviction for
permitting use
as brothel, &c.

5.—(1) Upon the conviction, after the passing of this Act, of the tenant, lessee, or occupier of any premises of knowingly permitting the premises, or any part thereof, to be used as a brothel, the landlord or lessor shall be entitled to require the person so convicted to assign the lease or other contract under which the said premises are held by him to some person

approved by the landlord or lessor, which approval shall not be unreasonably withheld, and, in the event of the person so convicted failing within three months to assign the lease or contract as aforesaid, the landlord or lessor shall be entitled to determine the lease or other contract but without prejudice to the rights or remedies of any party to such lease or contract accrued before the date of such determination. If the landlord or lessor should so determine the lease or other contract of tenancy, the court which has convicted the tenant, lessee, or occupier shall have power to make a summary order for delivery of possession to the landlord or lessor.

(2) If the landlord or lessor after such conviction has been brought to his notice fails to exercise his rights under the foregoing provisions of this section and subsequently during the subsistence of the lease or contract any such offence is again committed in respect of the premises, the landlord or lessor shall be deemed to have knowingly aided or abetted the commission of that offence, unless he proves that he had taken all reasonable steps to prevent the recurrence of the offence.

(3) Where a landlord or lessor determines a lease or other contract under the powers conferred by this section and subsequently grants another lease or enters into another contract of tenancy to, with, or for the benefit of the same person without causing to be inserted in such lease or contract all reasonable provisions for the prevention of a recurrence of any such offence as aforesaid, he shall be deemed to have failed to exercise his rights under the foregoing provisions of this section, and any such offence as aforesaid committed during the subsistence of the subsequent lease or contract shall be deemed, for the purposes of this section, to have been committed during the subsistence of the previous lease or contract.

(4) A person quitting premises in Ireland held by him under a lease or contract which has been determined in pursuance of this Act shall not be entitled to compensation under the Town 6 Edw. 7, c. 54. Tenants (Ireland) Act, 1906.

6.—(1) The provisions in section four hundred and three of the Burgh Police (Scotland) Act, 1892, relating to the voidance or termination of any lease or arrangement to let shall apply in like manner upon a conviction under section thirteen of the Criminal Law Amendment Act, 1885, as amended by this Act.

Determination of tenancy of premises on conviction for permitting use as brothel, &c. in Scotland. 55 & 56 Vict. c. 55.

(2) This section shall be substituted in Scotland for section five of this Act.

7.—(1) In section one of the Vagrancy Act, 1898, and in section one of the Immoral Traffic (Scotland) Act, 1902, in subsection (3) (which deals with the evidence of living on the earnings of prostitution) there shall be substituted for the words “and has no visible means of subsistence” the words “or is proved to have exercised control, direction, or influence over the movements of a prostitute in such a manner as to show that he is aiding, abetting, or compelling her prostitution with any other person or generally.”

Amendments of 61 & 62 Vict. c. 39 and 2 Edw. 7, c. 11.

(2) The period of imprisonment with hard labour which may be awarded to a person deemed to be a rogue and vaga-

5 Geo. 4, c. 88.

bond under the Vagrancy Act, 1898, or to a person convicted summarily of a crime and offence under the Immoral Traffic (Scotland) Act, 1902, shall be increased to six months, but such person shall not be liable to be dealt with as an incorrigible rogue within the meaning of the Vagrancy Act, 1824. Save as aforesaid, nothing in this subsection shall affect the powers of a court of summary jurisdiction to deal with a person deemed to be a rogue and vagabond under the Vagrancy Act, 1898, anything in any other Act to the contrary notwithstanding.

(3) The Vagrancy Act, 1898, as amended by this section shall extend to Ireland with this modification, that for the words "be deemed a rogue and vagabond within the meaning of the Vagrancy Act, 1824, and be liable to be dealt with accordingly" there shall be substituted the words "be liable on summary conviction to imprisonment for a term not exceeding six months with hard labour."

(4) Every female who is proved to have, for the purposes of gain, exercised control, direction, or influence over the movements of a prostitute in such a manner as to show that she is aiding, abetting, or compelling her prostitution with any person, or generally, shall be guilty of an offence under the Vagrancy Act, 1898, or in Scotland under the Immoral Traffic (Scotland) Act, 1902, and those Acts as amended and extended by this section shall apply accordingly.

(5) A person charged with an offence under the Vagrancy Act, 1898, or the Immoral Traffic (Scotland) Act, 1902, may, instead of being proceeded against in England as a rogue and vagabond, or in Scotland or Ireland summarily, be proceeded against on indictment, and on conviction on indictment shall be liable to imprisonment, with or without hard labour, for a term not exceeding two years, and, in the case of a second or subsequent conviction, such second or subsequent conviction being a conviction on indictment, the court may, in addition to any term of imprisonment awarded, sentence the offender if a male to be once privately whipped, and the number of strokes and the instrument with which they shall be inflicted shall be specified by the court in the sentence.

(6) The wife or husband of a person charged with an offence under either of the said Acts may be called as a witness either for the prosecution or defence and without the consent of the person charged, but nothing in this provision shall affect a case where the wife or husband of a person charged with an offence may at common law be called as a witness without the consent of that person.

Restriction on
application of
Act.

8. This Act shall not apply to proceedings pending at the commencement of this Act.

Short title.

9. This Act may be cited as the Criminal Law Amendment Act, 1912; and the Criminal Law Amendment Act, 1885, and this Act may be cited together as the Criminal Law Amendment Acts, 1885 to 1912.